

		relationship. (FAC ¶¶ 8-20.) However, personnel management actions, including criticism, discipline, reassignment, demotion, and termination, generally do not constitute conduct “so extreme and outrageous as to go beyond all possible bounds of decency.” (See <i>Hughes v. Pair, supra</i>, 46 Cal.4th 1035, 1051 [insults, indignities, threats or annoyances]; <i>Shoemaker v. Myers</i> (1990) 52 Cal.3d 1, 25 [discipline and criticism]; <i>McCoy v. Pacific Maritime Ass’n</i> (2013) 216 Cal.App.4th 283, 295 [isolation and ostracism]; <i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55, 80 [discriminatory personnel management decisions].) The alleged conduct arose from personnel management decisions and workplace supervision within the employment relationship, which generally cannot support an IIED claim. Thus, the demurrer to the second cause of action is SUSTAINED. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendant to give notice.
54	Evergreen Capital, LLC vs. Ball 25-01535288	Motion to Expunge Lis Pendens The Motion to Expunge Lis Pendens brought by SJO Investments, LLC dba Superior Homebuyers, LLC is MOOT, in part, and GRANTED, in part. It is undisputed this motion has been partially rendered MOOT, by the subsequent withdrawal of the relevant Lis Pendens. (See Opposition: 2:5-7 and Exhibit D attached thereto; See also Reply: 19-20.) Nonetheless, competing requests for attorneys’ fees remain, which require examination of the merits of the underlying Lis Pendens. (See <i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1021-1022.) The Court finds the Notice of Pendency of Action recorded as Document Number 2025000338655 was improperly recorded and GRANTS attorneys’ fees to SJO Investments, LLC dba Superior Homebuyers, LLC, in the amount of \$3,250.00. (Code Civ. Proc., § 405.38.) The competing request for attorneys’ fees made by Evergreen Capital, LLC, is DENIED. The unopposed Request for Judicial Notice filed by SJO Investments, LLC is GRANTED, pursuant to Evidence Code section 452, subdivision (h). (<i>Poseidon Development, Inc. v. Woodland Lane Estates, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) The relevant Notice of Pendency of Action was improperly recorded on December 5, 2025 (See Exhibit 1 of RJN [ROA No. 12]), prior to the initiation of this action on December 22, 2025. (See ROA No. 2; See also Code Civ. Proc., § 405.20 and <i>Manhattan Loft, LLC v. Mercury Liquors, Inc.</i> (2009) 173 Cal.App.4th 1040, 1051.) In addition to the above, the Notice of Pendency of Action was not properly served or filed. While the Notice of Pendency attaches a Proof of Service, which attests to mail service on Rinn W. Ball and Rosina M. Ball, prior to the recordation: (1) Moving party was not included within the service; and (2) The service was not completed via registered certified mail, as required. (Code Civ.

		Proc., § 405.22.) The above violations justify expungement. (See Code of Civ. Proc., § 405.23 and <i>McKnight v. Superior Court</i> (1985) 170 Cal.App.3d 291, 303; See also <i>Rey Sanchez Investments v. Superior Court</i> (2016) 244 Cal.App.4th 259, 263.) Finally, claimant Evergreen Capital, LLC, has not established the probable validity of any real property claim. “In proceedings under this chapter, the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” (Code Civ. Proc., § 405.32.) “Probable validity,” with respect to a real property claim, “means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim.” (Code Civ. Proc., § 405.3.) Code of Civil Procedure section 405.32 “requires a ‘judicial evaluation of the merits’ of a claimant’s case.” (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 651.) While a claim for specific performance on a contract to purchase real property is indisputably a real property claim (<i>De Martini v. Superior Court</i> (2024) 98 Cal.App.5th 1269, 1278), Plaintiff offers only an unauthenticated document, which purports to bear the electronic signatures of Defendant Rosina Ball and “Riin Ball,” to support the same. (See Exhibit A to Opposition [ROA No. 26].) As noted by Plaintiff, a contract is required to state a claim for specific performance. (<i>Real Estate Analytics, LLC v. Vallas</i> (2008) 160 Cal.App.4th 463, 472.) However, absent authentication, there has been no showing an agreement was entered into, between Plaintiff and Defendants Rosina Ball and Riin Ball. Additionally, as noted by moving Defendant, the purported Agreement appears to have been signed <i>only</i> by Rosina Ball. (See Exhibit A of the Opposition [ROA No. 26].) Based on all the above, despite the withdrawal, the Motion to Expunge was meritorious and, consequently, attorneys’ fees are awarded to SJO Investments, LLC dba Superior Homebuyers, LLC, in the amount of \$3,250.00. (Code Civ. Proc., § 405.38.)
55	Perez vs. Saint John’s Knits, Inc. 25-01523154	Motion to Compel Arbitration The motion of defendant Saint John’s Knits, Inc., for an order compelling arbitration of all of the claims in the complaint of plaintiff Cecilia Perez and staying court proceedings pending resolution of that arbitration is GRANTED. Plaintiff has filed a notice stating that she does not oppose the motion. The Court vacates the Case Management Conference set for September 18, 2026 and sets a Review Hearing re: Arbitration for November 13, 2026 at 8:30 AM in Department C16. Parties are ordered to file a joint status report no later than 15 days prior to the hearing addressing the status of the arbitration.